

24STCV12857 24STCV12857

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-01

Motion: PLAINTIFF'S NOTICE OF MOTION AND MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO

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Case Number: 24STCV12857 Hearing Date: September 1, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

J.S., minor, by and through his
Guardian ad Litem,

Sonia Sermeno; Sonia Sermeno an
individual,

Plaintiff(s),

vs.

LOS ANGELES UNIFIED SCHOOL
DISTRICT,

a California governmental
entity; BUDLONG

AVENUE ELEMENTARY SCHOOL, a

governmental entity; and DOES 1
to 50, inclusive,

Defendant(s).

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CASE NO: 24STCV12857

[TENTATIVE] ORDER RE: PLAINTIFF'S

NOTICE OF MOTION AND MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO

Dept. 731

September 1, 2026

8:30 a.m.

Matter No. 9

Moving Party: Plaintiff, J.S., minor

Opposing Party: Defendant, Los Angeles Unified School District

Notice: OK

Background Facts

Plaintiff J.S., a minor, by and through his Guardian ad Litem, Sonia Moreno ("Plaintiff"), sues Defendants Los Angeles Unified School District ("LAUSD"), Budlong Avenue Elementary School ("BAES"), and Does 1-50 pursuant to a May 22, 2024 Complaint alleging sexual assault and related claims arising from allegations that Plaintiff, a six-year-old special-needs kindergarten student at Budlong Avenue Elementary School, was allowed to use the restroom alone in violation of school policy and was then sexually assaulted by Doe 1, who orally copulated and bit J.S.'s genitals and forced J.S. to remove his clothing, with LAUSD and BAES failing to properly supervise students, negligently hiring and supervising staff, and violating mandatory child-abuse reporting duties, which allowed Doe 1's misconduct to occur and continue.

Now before the Court is Plaintiff's opposed June 5, 2026, motion for an order compelling further responses from the LAUSD to Plaintiff's Requests for Production of Documents, Set Two, Nos. 50-89, in response to which the LAUSD initially provided objection-only responses, and thereafter served mixed objection-only and substantive-responses on June 5, 2026, several hours before Plaintiff filed the instant motion.

Motion to Compel

Further Responses to Requests for Production of Documents, Request for

Monetary Sanctions

Preliminary
Considerations

Before addressing the merits of Plaintiff's motion, the Court discusses various procedural arguments raised in the LAUSD's opposition.

i. Deficiency
in Notice of Motion – Statutory Basis for Relief

The LAUSD argues that a basis for denying this motion arises from Plaintiff's notice of motion failing to specifically identify the statute supporting an order compelling further responses to Plaintiff's RFP, Set Two, as purportedly required by the Code of Civil Procedure at section 1010 and the California Rules of Court at rules 3.1110(a). (Motion, p. 9.)

The Court disagrees with this position.

Section 1010 states in pertinent part as follows: "Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." Rule 3.1110(a), in turn, merely states that "[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." Neither authority on its face requires identification of a statute to "identify the grounds" on which relief is sought.

Back to the merits, upon consideration, the Court determines notice of the grounds for relief was sufficient. Illustrative is the very case cited by the LAUSD, *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 138 (*Golf & Tennis Pro*), where the court of appeal determined that a notice of motion altogether failed to meet its obligations under section 1010 where, in relevant part, the notice (1) did not cite any statutory authority for the motion, or attempt to state what, if anything, was deficient about the responses to the interrogatories, and (2) failed to identify the papers upon

which it was to be based.

Unlike Golf & Tennis Pro, where the moving party's "notice stated when it would be made (Sept. 17, 2021), but that was about it" (id. at p. 137), and the moving party failed to identify the papers upon which the motion was based (id. at p. 138), here, the notice before the Court provides ample description of the dispute underlying Plaintiff's motion and the general grounds for relief in relation to all the production requests in Plaintiff's motion. (Motion, 2:8-24 [grounds for relief], 2:25-3:2 [identification of papers upon which motion is based].)

Consequently, the LAUSD's notice argument for denying Plaintiff's motion, as relates to identification of statutory grounds supporting relief, fails.

ii. Deficiency

in Notice of Motion – Identification of Discovery Requests at Issue

The LAUSD next argues that the notice of motion here is deficient because it fails to identify the discovery requests at issue, thus failing to comply with California Rules of Court, rule 3.1345(d), citing Golf & Tennis Pro in support. (Motion, p. 9.)

The Court disagrees with this position.

To the extent that Golf & Tennis Pro discusses failure to identify discovery requests at issue in a notice of motion, it does so in the context of section 1010, discussed and disposed of in the preceding subsection.

And to the extent that the LAUSD's argument is premised on California Rules of Court, rule 3.1345(d), the LAUSD is correct that the rule generally requires that "a motion concerning interrogatories, inspection demands, or admission requests must identify the interrogatories, demands, or requests by set and number." However, the Court finds no violation of the rule here. Plaintiff's points and authorities and separate statement make clear that Plaintiff seeks further responses to RFP, Set Two, Nos. 50-89, in full, which is not contradicted by the notice of motion, which seeks an order compelling the LAUSD "to provide further responses

to Plaintiff's Request for Production of Documents, Set Two," which the Court determines sufficiently satisfies rule 3.1345(d) in context. (Motion, 2:6-7; cf. Golf & Tennis Pro, supra, 84 Cal.App.5th at pp. 133-134 [moving papers filed only with (1) a notice of motion that failed to identify the discovery at issue other than to seek an order generally compelling responses to a set of discovery, (2) a separate statement identifying the discovery as involving Interrogatories 9 to 14, and (3) no other supporting papers], 138 [notice of motion left responding party and court under impression that all interrogatories were at issue].)

Consequently, the LAUSD's notice argument for denying Plaintiff's motion, as relates to identification of the specific discovery requests at issue, fails.

iii. Overly Long Memorandum

Next the LAUSD argues that Plaintiff's motion should be denied where its points and authorities span 27 pages, far exceeding the limit of 15 pages provided in the California Rules of Court. (Opposition, p. 9.)

The Court agrees insofar as there is a violation of the rule. Plaintiff's points and authorities span pages 4 to 30 of the moving papers, spanning 27 pages, 12 pages in excess of the 15-page limit set by California Rules of Court, 3.1113(d).

However, rather than deny Plaintiff's motion, the Court simply exercises its inherent powers (see Code Civ. Proc., § 128, subd. (a)(8)) and declines to consider arguments raised by Plaintiff beyond the 15th page of the points and authorities, i.e., the end of the page paginated as "18."

iv. Failure to Meet and Confer

If a party or attorney made no effort to resolve the discovery dispute informally prior to filing a motion to compel further responses, it is considered an egregious violation of the meet-and-confer requirement, and the court can deny the motion to compel

without any further attempts to secure an informal resolution by the parties. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 433-434.) If the effort to meet and confer was merely inadequate, a court should consider giving the moving party another opportunity to meet the requirement before denying the motion to compel. (*Id.* at pp. 434-435; see *Volkswagenwerk A.G. v. Superior Court* (1981) 122 Cal.App.3d 326, 331-332.)

In determining whether the failure to meet and confer was egregious or merely inadequate, the court should consider eleven factors set forth in the statute, including the history of the case, the past conduct of counsel, the nature and extent of the actual efforts made, the nature of the discovery requested and its importance to the case, the margin by which the moving party deviated from a reasonable and good-faith attempt at an informal resolution, whether supplemental responses have been served, and any other factor relevant under the circumstances. (*Obregon, supra*, at p. 435.) Inasmuch as judges are duty bound to manage court calendars with a view to minimizing both delay and unnecessary expense, the prospects that further informal efforts would be fruitful should also be considered. (*Ibid.*) When appropriate, the party whose efforts were found wanting may be assessed with monetary sanctions. (*Ibid.*)

Here, the Court determines that, specifically within the context of the procedural history in this litigation, (1) meet and confer proceedings prior to the filing of this motion were merely inadequate rather than an egregious violation of the meet-and-confer requirement and (2) further meet and confer efforts are necessary prior to a determination on the merits of Plaintiff's motion.

Meet and confer proceedings here were merely inadequate based on the complicated procedural history preceding this motion. This history is detailed in the moving papers at counsel's declaration and explains that RFP, Set Two, Nos. 50-89, were served on the LAUSD by Plaintiff on April 3, 2026, with extensions granted to the LAUSD "until close of business on Friday," May 22, 2026, on which date, specifically at 10:42 PM, LAUSD served objection only responses to Request Nos. 50-89, following up with mixed objection-only and substantive responses to the same discovery on June 5, 2026, hours before Plaintiff filed the motion before the Court, with Plaintiff arguing that the June 5th responses are similarly defective and essentially amount to gamesmanship. (Motion, 5:3-16; Motion, *Vulic Decl.*, ¶¶ 2-8, Exs. 1-5.) To the Court, these circumstances simply do not

show egregious disregard for meet and confer requirements so much as protracted and contentious litigation, with belated substantive responses, however justified the delay may have been, served on the eve of the motion to compel deadline, at a time when Plaintiff's counsel had completed briefing on the present issues.

Given that the Court has determined that meet and confer here was merely inadequate within the context of the litigation, the Court opts to provide Plaintiff another opportunity to meet the requirement before taking the step of ordering a denial, consistent with Obregon.

Accordingly, the Court CONTINUES the hearing on Plaintiff's motion as provided in the Conclusion below.

v. Deficiency
in Notice of Motion – Sanctions

The Court discusses this derivative issue below in Section 2.c.ii.2, though the Court notes out of hand that the LAUSD provides sufficient statutory grounds to deny the monetary sanctions requested in Plaintiff's moving papers.

b. Compelling
Further Production Responses

Having continued the order on Plaintiff's motion, as specified in the Conclusion, the Court does not at this time reach the merits of whether further responses should be ordered from the LAUSD regarding RFP, Set Two, Nos. 50-89.

c. Request
for Sanctions

i. Plaintiff's
Request for Sanctions

The LAUSD's next procedural argument is that any monetary sanctions sought in Plaintiff's moving papers cannot be granted because Plaintiff's notice of motion fails to satisfy the requirements of Code of Civil Procedure section 2023.040. (Motion, pp. 16-17.)

The Court agrees.

Section 2023.040 sets forth the requirement that, with emphasis added, “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.”

Here, the notice of motion altogether fails to identify any sanction sought, let alone the type of sanction sought or the party or counsel against whom those sanctions are sought. (Motion, pp. 1-3 [the entire Notice of Motion].)

Moreover, the Court has declined to consider arguments raised beyond the 15th page of Plaintiff’s points and authorities. Given that Plaintiff’s request for sanctions appears in the 25th page of Plaintiff’s points and authorities, the Court rejects any request for sanctions by Plaintiff in the moving papers past page 18 of the briefing.

Sanctions as requested in the moving papers are accordingly DENIED.

ii. The
LAUSD’s Request for Monetary Sanctions

Given the continuance of the merits of Plaintiff’s motion to compel, the Court defers a determination on the LAUSD’s derivative request for monetary sanctions, raised in its opposition, to the same date below.

d. Conclusion

Plaintiff’s J.S., minor’s motion to compel further responses is CONTINUED to 8:30 AM on Tuesday, October 6, 2026.

Five court days prior to the continue hearing, the parties SHALL file a joint statement, not to exceed five pages, caption page not included, and supported by declarations from counsel, detailing the parties’ meet and confer efforts following this hearing, summarizing any additional procedural history relevant to RFP, Set Two, Nos. 50-89, establishing which requests for production remain at issue, and summarizing the

parties' positions following additional meet and confer.

Plaintiff's J.S., minor's request
for monetary sanctions is DENIED.

Defendant Los Angeles Unified
School District is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 1, 2026 _____

MARK C. KIM

Judge of the
Superior Court